

CITATION: Goralczyk v. The Beer Store, 2016 ONSC 993

COURT FILE NO.: CV-15-542558

DATE: 20160208

SUPERIOR COURT OF JUSTICE - ONTARIO

RE: Anna-Marie Goralczyk,

Plaintiff

AND:

The Beer Store, United Food and Commercial Workers (UFCW) local 12R24 union; CFRA Ontario; Canada's National Brewers; The City of Toronto (Office of the Mayor); Granite Claims Solutions Toronto (Downtown), ClaimsPro; Premier of Ontario; the Attorney General of Ontario; Ontario Association of Chiefs of Police Corporate Office, Mary Jocelyn Aviado, Danilo Aviado, Elizabeth Bowels [sic] Lyon, Pope Bergoglio, Jim Makris, William Blair, Children's Aid Society aka Valoris, Annie Ivy-Lea O'Neill aka. Annie Ivy-Lee Aviado; Terry-Lynn Benoit, Helen Fournier; Alaine Hupe Huppe; Children's Aid Society of Toronto; Gordon Pon; MaryAnn Bechthold, Martine Edwards; Ms. Gallant; Gary O'Neill; Lillian O'Neill, Christine Goralczyk Bennett, Catherine Goralczyk, Adesso Fenton, James Joseph Goralczyk, Rick Siwek; Jaclyn Mitruk Siwek; Allison Siwek White, Jillian Siwek Jackson; Royal LePage Real Estate; Allan Jones; Kathy Gross, Allan Organization; Joe Mizzi; Fiona Lou Mizzi; Enzo Mizzi Lydia Lazaro Mizzi; Carman Mizzi, Phil Mizzi; The Mizzi Organization aka Alonzi; North 44 Management; Sheldrake Management, Sylvia Sammut Kanary, Tammy Sandra Conway Rose, George Ohrling; Kathleen Thornton, Judge Helen Pierce; Judge Jean L. MacFarland, Judge Herman Jan Wilton Siegel, Judge Goodman, Janet McDaniel, Deborah Guild, St. Michael's Hospital, Dr. Melissa Chacko, Dr. Quack, Paul Martin, Stephen Harper, Justin Trudeau, Central Neighborhood House, Christian Resource Center aka 40 Oak Center, Good Shepherd Ministries, 111 Wellesley St. Public Service Office, Toronto Public Library, Bonnie Gryce, Blair Leslie Botsford, Angela O'Neill, Jody Wilson, Jonathan Ptak, Kirk Baert, Mike Bryant, Chris Bentley, Madeleine Meilleur, Tina Earl, Karen Shaw, Anthea Cheung, Victorias Yankou, Stephen Tsoi, Terri-Lynn Benoit, Patricia Kelly, George Bell, David Lynch, Elizabeth Forestell, Gita Dessner, Anica Raskovic, Claire Barcik, Kathleen Adams Warren Kaus, Irene Ryner, Pam Gawn, Tran Vu, Raymond Mallozzi, Violet Halladay, Christine, Swearing, Norm Kelly, Rob Ford, David Miller, John Tory, Judge Gloria Klowak, Judge Robert Armstrong, Judge John Hamilton, Judge Richard Schneider, Judge Bruno Cavio, Judge John Ritchie, Jeff Newton, Mike Tallis, Rob Mather, Jamie Rillet, Ted Moroz, Andrea Randolph, Doug Moffet et Al. Deborah Goralczyk Walker Smith, Lawrence Goralczyk.

Defendants

BEFORE: F.L. Myers J.

HEARD: February 8, 2016

ENDORSEMENT

[1] This motion was referred to me by the registrar's office pursuant to rule 2.1.01(7) following receipt of a written request of the lawyers for the defendants Granite Claims Solutions Toronto (Downtown) and ClaimsPro under subrule 2.1.01(6). On my own motion, under Rule 2.1.01(1), I also consider this matter from the perspectives of all of the defendants.

[2] The plaintiff sues a large number of defendants. The two moving defendants are not mentioned in the body of the statement of claim. Among the other defendants are the current and several former Prime Ministers of Canada, the current and several former Attorneys General of Ontario, the current and several former Mayors of Toronto, judges and former judges of various courts and Her Late Majesty, the Queen Mother.

[3] At its core, the action seems to involve a slip and fall accident that the plaintiff says happened on January 7, 2014 at a beer store. The plaintiff says that she fell and broke her leg on black ice. She claims that The Beer Store and the City of Toronto were the occupiers of the sidewalk or entranceway where she fell and as a result of their negligence, she sustained injuries for which she seeks compensation payable in bars of gold.

[4] The rest of the 27 page pleading however is largely incomprehensible. The plaintiff expresses concern about being stalked by criminal organizations. It is apparent that she believes that her daughter was wrongly taken from her under legal process in 2004 and she wishes to use these proceedings to seek redress against all whom she can blame for that event.

[5] The statement of claim appears on its face to be frivolous, vexatious, or an abuse of process. If I understand the claim correctly, the plaintiff purports to sue a large number of people for matters that are not properly the subject of a civil lawsuit before this court. *Gao v. Ontario WSIB*, 2014 ONSC 6497 (CanLII).

[6] Moreover, the nature of the claim raises concerns as to whether this litigation is likely to become a vehicle for a party who might be inclined to inflict the harms of frivolous proceedings on the opposing parties and the civil justice system. *Scaduto v. The Law Society of Upper Canada*, 2015 ONCA 733 at para. 12.

[7] The plaintiff may be able to state a claim against the occupier(s) of the land on which she sustained a slip and fall accident. As currently drafted however, the statement of claim seems to do far more than is legally permissible.

[8] The plaintiff has communicated by fax with the registrar's office asking for the opportunity to file her arguments including a constitutional question concerning Rule 2.1. I agree that the plaintiff should have the opportunity to make arguments under Rule 2.1.01(3)(2). The plaintiff will therefore be provided with notice that she may deliver up to ten pages of written submissions within 15 days explaining why the action should not be dismissed under Rule 2.1.01(1).

[9] On reviewing the material forwarded by the registrar, the court makes the following order:

- a. Pursuant to subrule 2.1.01(3)(1), the registrar is directed to give notice to the plaintiff in Form 2.1A that the court is considering making an order under Rule 2.1.01 dismissing the action;
- b. Pending the outcome of the written hearing under rule 2.1 or further order of the court, the plaintiff's action is stayed pursuant to s.106 of the *Courts of Justice Act*, R.S.O. 1990, c.C.43¹;
- c. The registrar shall accept no further filings in this action excepting only the plaintiff's written submissions if delivered in accordance with rule 2.1.01(3);
- d. In addition to the service by mail required by 2.1.01(4) rule, the registrar is to serve a copy of this endorsement and a Form 2.1A notice on the plaintiff and counsel for the defendants by fax or email if it has their email addresses.

F.L. Myers J.

Date: February 8, 2016

¹ See *Gao v. Ontario WSIB et al.*, 2014 ONSC 6100 at para.